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WPC.No.28532/24

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IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE ZIYAD RAHMAN A.A.

WEDNESDAY, THE 1ST DAY OF JULY 2026 / 10TH ASHADHA, 1948

WP(C) NO. 28532 OF 2024

PETITIONER:

**M/S.JATAN CONSTRUCTIONS PVT LTD.
JATAN - TODARMAL MARG AJMER. REPRESENTED BY ITS
AUTHORIZED SIGNATORY, PIN - 305 001.**

**BY ADVS.
SHRI.DEEPU THANKAN
SMT.UMMUL FIDA
SMT.LAKSHMI SREEDHAR
SMT.LEKSHMI P. NAIR
SMT.VINEETHA BOSE
SMT.CINDIA S.**

RESPONDENTS:

- 1 INDIAN SPACE RESEARCH ORGANIZATION (ISRO),
DEPARTMENT OF SPACE, GOVERNMENT OF INDIA, LIQUID
PROPULSION SYSTEMS CENTRE, VALIAMALA P.O.,
THIRUVANANTHAPURAM REPRESENTED BY ITS GROUP HEAD.,
PIN - 695 547.**
- 2 ENGINEER-IN-CHARGE,
CONSTRUCTION AND MAINTENANCE GROUP, LIQUID
PROPULSION SYSTEMS CENTRE, VALIAMALA P.O.,
THIRUVANANTHAPURAM, PIN - 695 547.**



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- 3 **GROUP HEAD,
CONSTRUCTION AND MAINTENANCE GROUP, LIQUID
PROPULSION SYSTEMS CENTRE, VALIAMALA P.O.,
THIRUVANANTHAPURAM, PIN - 695 547.**

- 4 **REGIONAL LABOUR COMMISSIONER (CENTRAL),
UPPALAM ROAD, PALAYAM, THIRUVANANTHAPURAM,
PIN - 695 035.**

BY ADV SHRI.SUVIN R.MENON, SENIOR PANEL COUNSEL

**THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION
ON 01.07.2026, THE COURT ON THE SAME DAY DELIVERED THE
FOLLOWING:**



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JUDGMENT

The petitioner is a contractor, which was awarded with the work by the 1st respondent ISRO, named, "Civil, Electrical, Air-Conditioning, and Mechanical works for High Thrust Electric Propulsion System Facility (EPS) and Integrated Labs for Flow Control Valves and Control Systems (ILFC), at LPSC, Valiamala". Ext.P1 is the tender notification dated 13.08.2018 and Ext.P2 is the letter of acceptance dated 21.01.2019. Ext.P3 is the General Conditions of the Contract applicable to the work. As per the terms and conditions of the agreement, the work ought to have been completed on before 03.05.2020.

2. However, due to various reasons, including flood and COVID-19 pandemic, the work could not be completed in time, as the work got suspended during the said period. Therefore, extension of the term was provided to the petitioner, initially up to 30.01.2022 and later it was extended up to 30.07.2022. The petitioner had ultimately completed the work on 30.07.2022.



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Ext.P4 is the completion certificate dated 12.08.2022. The dispute involved in this case is in respect of Ext.P6 issued by the Engineer-In-Charge, the 2nd respondent herein. As per Ext.P6, the claim made by the petitioner for price escalation owing to the increase of the expenses, was considered, and to some extent it was allowed. According to the petitioner, as per Clause 10C(ii) of Ext.P3, the petitioner is entitled to get price escalation for the period in respect of the work carried out during the extended period. But, in Ext.P6, certain periods were excluded, which according to the petitioner could not have been done, in view of the specific conditions stipulated in the Ext.P3 General Conditions of Contract. Apart from the above, grant of final extension of time, which is for a period of 181 days was found to be for the reasons attributable to the contractor and therefore, the price escalation for the same was denied. As per Ext.P6, in respect of the period of 181 days from 31.01.2022 to 30.07.2022, it was also directed to levy compensation from the petitioner as per clause 2A of the contract agreement conditions. Even though the petitioner submitted Ext.P16, which is an objection against Ext.P6, before



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the 2nd respondent, the same was responded as per Ext.P17, rejecting the contentions of the petitioner. This writ petition is submitted by the petitioner in such circumstances seeking the following reliefs:

- “a) issue a writ of certiorari or any other appropriate writ or order calling for the records leading to the issuance of Exhibit P-6 and P-7 and quash the same in so far as it declaring 181 days as unjustified delays and excluding 458 days from the escalation benefits and further, in so far as it directs the petitioner to claim minimum daily wages as stated in the annexure attached to Exhibit P-6;
- b) issue a writ of mandamus or any other appropriate writ, order, or direction directing the third respondent to recalculate the labour indices and minimum wages as confirmed by the fourth respondent vide its various communications including Exhibit P-11;
- c) issue a writ of mandamus or any other appropriate writ, order or direction directing the respondents 1 to 3 to consider



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the benefits of escalation for 458 days as justifiable delay as there is no fault on the part of the petitioner and recalculate the escalation amount forthwith;

- d) issue a writ of mandamus or any other appropriate writ, order, or direction directing the respondents 1 to 3 to reconsider the action of declaring 181 days from 30/01/2022 to 30/07/2022 as unjustified delay based upon the drawing Register and site order book etc.;
- e) to dispense with the filing of the translation of vernacular documents produced by the petitioner in this case;

And

- f) grant such other reliefs which this Hon'ble Court may deem fit and necessary to grant in the facts and circumstances of the case."

3. A detailed counter affidavit has been submitted on behalf of the respondents 1 to 3, where, the averments made in the writ petition are stoutly denied, and the reliefs sought by the petitioner are opposed. The manner in which the amounts payable to the petitioner as escalation of the price determined, was explained in detail and the method of calculation adopted by them



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were also specifically mentioned therein. It was asserted by the respondents 1 to 3 that, all the calculations were made strictly by following the stipulations contained in Ext.P3 terms of contract and all the amounts eligible to the petitioner were correctly reckoned and benefit is extended to the petitioner. Thus, they seek for dismissal of the writ petition.

4. The petitioner had submitted a reply affidavit in response to the averments contained in the counter affidavit filed on behalf of the respondents 1 to 3.

5. I have heard Sri.Deepu Thankan, learned Counsel for the petitioner and Sri.Suvin R. Menon, learned Senior Panel Counsel appearing for the respondents.

6. The learned Counsel for the petitioner specifically challenged Ext.P6, by mainly focusing on three legal infirmities according to him. Firstly, in Ext.P6, out of 637 days, which was treated as the justified delay in completing the work, three periods extending to 284 days, 90 days and 84 days, which were in respect of COVID-19 pandemic and heavy rain as well as water stagnation, were excluded while computing the price



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escalation.

7. Secondly, the petitioner raises a dispute with regard to the wages payable to the workers, based on the notifications issued by the appropriate Government under the Minimum Wages Act, which is one of the essential components for determining the value of price escalation. It is pointed out that, at the time when the contract was entered into, the rates specified by the Central Government notification under the Minimum Wages Act, were higher for the unskilled employees and therefore it was being followed. However, during the subsistence of contract and after commencement of the work, the State Government notified a fresh notification, whereby, the rates under the State Government notification happened to be higher, than Central Government notification. Since as per the terms and conditions in the contract, higher rates among the rates notified by the State Government or Central Government has to be adopted, while taking price escalation, the value at higher rates as specified in the State Government notification will have to be taken into account. The dispute that arises in this case is in respect of the



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manner in which, the differential amount is to be calculated. This is because, while the rates were being taken on the basis of the Central Government notification, the area in which the work site of the petitioner is included, was specified by the Regional Labour Commissioner as the one includable in Area B of Central Government notification where higher rates are specified. On the other hand, the petitioner points out that, subsequently, the petitioner was issued with yet another communication issued by the Regional Labour Commissioner as evidenced by Ext.P11, wherein, the area in which the work site of the petitioner is situated is included in C Area, where the rates are lesser than that of the B Area. Thus, it is the specific case of the petitioner is that, since in the subsequent notification namely Ext.P11, the Regional Labour Commissioner has specified that the area falls under “C” Area, while determining the differential amount of the price escalation, the rate applicable to “C” Area will have to be adopted, whereas, in the calculation made based Ext.P6, the 2nd respondent has adopted the rate applicable to “B” Area which is at higher rates.



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8. Thirdly, the challenge raised by the petitioner against Ext.P6 is in respect of imposition of compensation of 181 days for the period from 31.01.2022 to 30.07.2022 by treating the said period as unjustified delay which is attributable to the contractor and therefore, the compensation was calculated under Clause 2A of the contract agreement. According to the petitioner, the delay occurred, due to the reason that, while executing the work, in respect of the very same project, another tender was floated by the 2nd respondent in respect of installation of certain machineries in the building that was to be constructed by the petitioner, and for installation of such machineries, the site was to be handed over to the other contractor and that caused delay. According to the petitioner, while imposing the liability of compensation by treating that 181 days as unjustified delay, the petitioner was not extended with an opportunity to establish that, the petitioner had valid reasons for explaining the delay. Ext.P6 was issued without issuing any notice and imposing huge liability upon the petitioner. Thus, according to the petitioner, the same is liable to be interfered with in view of the fact that, it was issued in



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violation of the principles of natural justice.

9. On the other hand, the learned Senior Panel Counsel appearing for the respondents, vehemently opposed the contentions raised by the petitioner. As regards the first issue, namely, the exclusion of the periods of 284 days, 90 days and 84 days, while computing the price escalation, it is the specific case of the respondents 1 to 3 that, those days were excluded in view of the fact that, admittedly no work was carried out by the petitioner.

10. In support of his contentions, the learned Senior Panel Counsel brought to the attention of this Court, the stipulations contained in Clause 10C (ii) to show that, what is contemplated in the said provision is for calculating the benefit of escalation for the work done during the said period and therefore, the amount will have to be calculated only in terms of the work. According to him, it was in these circumstances, the days during which no work was admittedly carried out, were excluded. With regard to the contention raised by the learned counsel for the petitioner relating to the calculation of differential amount on the



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basis of the notification on the Minimum Wages Act, the submission of the learned Senior Panel Counsel relies on Ext.P13 communication which is issued by the Regional Labour Commissioner on 29.08.2019, wherein the minimum wages for the relevant project was adopted based on the Central Government notification by including the site in the "B" area. According to the respondent, both the petitioner as well as the 2nd respondent have adjusted their transactions, under the impression that the site is falling under the "B" area. Going by the notification, the site would fall under the "B" area alone and therefore, the contention of the petitioner that it falls within the "C" area is stoutly opposed. With regard to the contention regarding the imposition of compensation for the unjustified delay of 181 days for completing the work was also opposed by the learned Senior Panel Counsel mainly contending that the same is a pure question of fact which cannot be decided in a writ jurisdiction.

11. I have carefully gone through the records and examined the contention of both the parties. The relevant clauses applicable are Clause 10C (ii) and Clause 5 of Ext P3. Apart from



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the above, the learned Senior Panel Counsel also raised a contention about the maintainability of the writ petition as according to him, the dispute raised in this writ petition is pertaining to the interpretation of the terms of non-statutory contract and therefore, the public law remedy cannot be invoked. Apart from the above, the learned Senior Panel Counsel also brought to the attention of this Court, the alternate dispute resolution mechanism contemplated under Clause 25 of Ext.P3, which deals with the dispute being referred to by the 3rd respondent herein. It is pointed out that no such measures have been taken by the petitioner.

12. One of the crucial Clauses that is to be considered for determining the first question of exclusion of certain periods for the computation of the escalation is Clause 10C(ii), which reads as follows:

“CLAUSE 10C (ii) PAYMENT DUE TO INCREASE/
DECREASE IN PRICES/ WAGES AFTER RECEIPT OF
TENDER FOR WORKS (APPLICABLE ONLY FOR WORKS
WITH STIPULATED PERIOD OF COMPLETION MORE
THAN 12 MONTHS)



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If the prices of materials (not being materials supplied at fixed prices by the Department in accordance with clause 10) and/ or wages of labour required for execution of the work increase, the contractor shall be compensated for such increase as per provisions detailed below and the amount of the contract shall accordingly be varied, subject to the condition that such compensation for escalation in prices shall be available only for the work done during the stipulated period of the contract including the justified period extended under the provisions of clause 5 of the contract without any action under clause 2A.

No such compensation shall be payable for a work for which the stipulated period of completion is equal to or less than 12 (twelve) months. Such compensation for escalation in the prices of materials and labour, when due, shall be worked out based on the following provisions.

(i) The base date for working out such escalation shall be the last stipulated date of receipt of tenders including extension, if any, (ii) The cost of work on which escalation will be payable shall be reckoned as below :-

Gross value of work done upto this quarter	[A]
Gross value of work done upto the last quarter	[B]
Gross value of work done since previous quarter (A-B)	[C]
Full assessed value of Secured Advance, fresh paid in this quarter	[D]
Full assessed value of Secured Advance, recovered in this quarter	[E]
Full assessed value of Secured Advance for which escalation payable in this quarter [D-E]	[F]
Advance payment made during this quarter	[G]



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Advance payment recovered during this quarter	[H]
Advance payment for which escalation is payable in this quarter [G-H]	[I]
Extra items /deviated quantities of items paid as per Clause 12 based on prevailing market rates during this quarter.	[J]
Then, $M = C \pm F \pm I - J$ $N = 0.85 M$	
Less cost of material supplied by the Department as per Clause 10 and recovered during the quarter	[K]
Cost of work for which escalation is applicable : $W = N - (K)$	

(iii) Components of materials and labour shall be predetermined for every work and incorporated in the condition of contract attached to the tender papers included in schedule 'F'. The decision of the Engineer-in-charge in working out such percentage shall be binding on the contractors.

(iv) The compensation for materials shall be worked as per the formula given below :-

(a) Adjustment for Materials

$$V_m = W \times X_m / 100 \times MI - MI_0 / MI_0$$

Where,

V_m = Variation in material cost i.e. increase or decrease in the amount in rupees to be paid or recovered.

W = Cost of Work done worked out as indicated in sub-para

(ii). X_m = Component of materials expressed as percent to the total value of work as specified in Schedule F.

MI = All India Wholesale Price Index for all commodities for the period under consideration published by Economic Advisor to Govt. of India, Ministry of Industry & Commerce.



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MI_0 = All India Wholesale Price Index for all commodities valid on the last stipulated date of receipt of tender including extension, if any, as published by the Economic Advisor to Govt. of India, Ministry of Industry & Commerce.

(v) The following principles shall be followed while working out the indices mentioned in Para (iv) above

(a) The compensation for escalation shall be worked out at quarterly intervals and shall be with respect to the cost of work done as per bills paid during the three calendar months of the said quarter. The first such payment shall be made at the end of three months after the month (excluding) in which the tender was accepted and thereafter at three months interval. At the time of completion of the work, the last period for payment might become less than 3 months, depending on the actual date of completion.

(b) The index (MI) relevant to any quarter/ period for which such compensation is paid shall be the arithmetical average of the indices relevant to the three calendar months. If the period upto date of completion after the quarter covered by the last such installment of payment is less than three months, the index MI shall be the average of the indices for the months falling within the period.

(vi) The compensation for escalation for labour shall be worked out as per the formula given below :-

$$V_L = W * Y_L / 100 * LI - LI_0 / LI_0$$

Where, V_L = Variation in labour cost i.e. amount of increase



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or decrease in rupees to be paid or recovered.

W = Value of work done, worked out as indicated in sub-para (ii) above.

Y_L = Component of labour expressed as a percentage of the total value of the work as specified in Schedule F.

LI = Minimum daily Wage in rupees of an unskilled adult male mazdoor, fixed under any law, statutory rule or order as applicable on the last date of the quarter previous to the one under consideration.

LI_0 = Minimum daily wage in rupees of an unskilled adult male mazdoor fixed under any law, statutory rule or order as applicable on the last stipulated date of receipt of tender including extension, if any.

(vii) The following principles will be followed while working out the compensation as per sub-para (vi) above.

(a) The minimum wage of an unskilled male mazdoor mentioned in sub-para (vi) above shall be the higher of the wage notified by Government of India, Ministry of Labour and that notified by the local administration both relevant to the place of work and the period of reckoning.

(b) The escalation for labour also shall be paid at the same quarterly intervals when escalation due to increase in cost of materials is paid under this clause. If such revision of minimum wages takes place during any such quarterly intervals, the escalation compensation shall be payable at revised rates only for work done in subsequent quarters.

(c) Irrespective of variations in minimum wages of any



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category of labour, for the purpose of this clause, the variation in the rate for an unskilled adult male mazdoor alone shall form the basis for working out the escalation compensation payable on the labour component. (viii) In the event, the price of materials and/ or wages of labour required for execution of the work decrease/s, there shall be a downward adjustment of the cost of work so that such price of materials and/or wages of labour shall be deductible from the cost of work under this contract and in this regard the formula herein before stated under this Clause 10C (ii) shall mutatis mutandis apply.”

13. On going through the stipulations contained in Clause 10C(ii), it can be seen that, it provides for the complete procedure as to the manner in which the computation has to be made. It is specifically stipulated that, although the contractor is entitled to get the benefit of escalation, the same is subject to the condition that, such compensation for escalation in prices, shall be available *for the work during the stipulated period of contract*, including the justified period excluded under the provisions of Clause 5 of the contract without any action under Clause 2A. Clause 5 of the contract deals with the circumstances under which, the extension for the delay can be affected. Clause 5.2 (i)



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in the said Clause provides that force majeure is one of the conditions and admittedly the said Clause is applicable in this case. Similarly, Clause 2A deals with circumstances where the compensation for the delay at the instance of the contractor, can be imposed. Thus, it is evident from the reading of Clause 10C(ii) along with Clauses 5 and 2A that, what is relevant for the computation of the escalation benefits, is the actual work done during the stipulated period of contract, including the justified period excluded under the provisions of Clause 5. In this case, as far as the 637 days referred to in Ext.P6 is concerned, there is no dispute that, such extension was granted under the provisions of Clause 5.

14. The question that arises is whether the computation made by the 2nd respondent as evidenced by Ext.P6 by excluding certain days, where the work was suspended was proper or not. The learned counsel for the petitioner brought to the attention of this court, Clause 15 of the Ext P3 that provides for the matters relating to the suspension of work. The said clause also contains a specific stipulation that in respect of the said period, when the



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Engineer-in-Charge has intimated the contractor in writing for suspending the work, contractor will be allowed extension of time for completion not less than the period of suspension. It is one of the contentions of the learned counsel for the petitioner that, while excluding the period as referred to above, respondents have invoked Clause 15 and according to the petitioner the said clause is not applicable at all. On carefully going through the stipulations in Clause 15, I find some merit in the submission made by the learned counsel for the petitioner because, the said Clause is applicable in cases where an intimation in writing is issued by the Engineer-in-charge of the contractor of suspending the work and in such circumstances the contractor will be allowed extension of time, not less than the period of suspension but no other claims in this respect for compensation or otherwise, however will be admissible. In this case, there is nothing on record to show that, any intimation in writing as referred to in Clause 15 is issued to the petitioner, and the work was suspended on account of the reasons owing to COVID-19 and flood situation. As far as those reasons are concerned, those are specifically coming under Clause



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5.2(i) i.e., *force majeure* and therefore, the suspension of work on account of the same cannot be equated with the situation referred to in Clause 15. Therefore, the said Clause is not at all applicable to this case.

15. Now when it comes to the exclusion of the period as specified in Ext.P6, evidently, going by Clause 10(C)(ii), what is relevant for reckoning the value of the escalation benefits, is the work carried out during the period specified in the contract which includes the extended period justified as per the terms of the contract. Evidently, 637 days referred to above comes within the said justified excluded period and therefore, the value of the escalation of prices will have to be determined strictly based on the quantity of the work carried out during the said period, by strictly applying the parameters contemplated under Clause 10C(ii) itself. Therefore, the exclusion of specified days itself as such is not apparently contemplated going by Clause 10C(ii) and what is relevant is the actual quantity of work carried out during the period. This is a matter to be reconsidered by the authorities concerned.



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16. With regard to the question of the differential rates referred in the notification under the Minimum Wages Act, there are two communications issued by the Regional Labour Commissioner, one is Ext.P11 and the other is Ext.P13 which is dated 29.08.2019. Ext P13 clearly indicates that the rates have been calculated by including the site in “B” area, where the rates are higher, whereas in Ext.P11, it is stated by the Regional Labour Commissioner that the said area has to be included in “C” area, where lesser wages are applicable. Since, this is relevant aspect for calculating differential amount for determining the prices of escalation, a clarification in this regard will have to be obtained from the competent officer. Even though there is no dispute that the competent officer to take a decision is the Regional Labour Commissioner, who issued Exts.P11 and P13 as mentioned above, as of now, there are two intimations showing two different positions. Even though the Regional Labour Commissioner was impleaded as a party in this writ petition, there is no counter affidavit submitted by the said respondent. Therefore, I am of the view that since this is a matter to be decided based on the



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clarification from the Regional Labour Commissioner, the said issue will have to be decided afresh by the competent authority, after calling for a report from the said Regional Labour Commissioner.

17. The third aspect is in relation to the imposition of liability of compensation upon the petitioner by treating the period from 31.01.2022 to 30.07.2022 as the unjustified delay on the part of the petitioner. In this regard, it is to be noted that, in Ext.P6, there is no reference of any previous notice issued to the petitioner or no hearing conducted. Specific case of the petitioner is that, the petitioner has valid reasons to offer, as explanation for the delay and since the petitioner was not granted an opportunity before a decision is taken to impose compensation upon the petitioner in respect of the said period, Ext.P6 is liable to be interfered with. I find some merit in the said submission because, without issuing any prior notice or intimation, huge liability was imposed upon the petitioner. Therefore, this is a matter ought to have been decided by the 2nd respondent or the competent authority by issuing a notice to the petitioner and also



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extending the petitioner an opportunity to show the reasons for the delay. Therefore, to that extent, the imposition of compensation upon the petitioner by treating the aforesaid period as unexplained delay is not proper.

18. With regard to the contention raised by the learned Senior Panel Counsel regarding the maintainability of the writ petition, it is to be noted that, it is well settled that, when the arbitrariness on the part of the official respondents are shown, in the matter of the decisions taken which are impugned in the writ petition, this Court can invoke the jurisdiction under Article 226 of the Constitution of India, even in cases where, the terms and conditions of a non statutory contract are involved. Here in this case, I have already found that the petitioner was imposed with huge liability as per Ext.P6 without issuing notice to the petitioner and thus there is violation of principles of natural justice. Apparently, there is some discrepancy, in the exclusion of the period, while computing the price of escalation as well. I have already held that, the computation will have to be specifically carried out strictly in terms of the stipulations contained in Clause 10C(ii),



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where the unit for such computation is specified as the quantity of the work carried out by the Contractor during the relevant period inclusive of the extended period for justifiable reasons. In other words, while determining the value of the escalation, the number of days is not relevant and what is relevant is the work carried out during the relevant period specified in the contract inclusive of the extended period. In such circumstances, I am of the view that, the matter requires reconsideration.

19. As pointed out by the learned Senior Panel Counsel, there is a dispute resolution mechanism provided in Clause 25 of Ext.P3. According to the petitioner, it has submitted Ext.P16 before the 2nd respondent, but the same was neither referred to the competent authority as contemplated under Section 25, nor decided and finalized. Since going by Clause 25, the issue will have to be firstly decided by the 3rd respondent, it is only proper that the contention of the petitioner be reconsidered by the said respondent.

20. In such circumstances, this writ petition is disposed of, directing the petitioner to submit a representation highlighting all the above aspects and raising claims before the 3rd respondent, along



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with necessary documents, within a period of one month from the date of receipt of a copy of this judgment. While raising the claim, it shall be open for the petitioner to furnish sufficient reasons for the delay of 181 days in respect of which compensation was imposed upon the petitioner as per Ext.P6. Upon receipt of the same, the 3rd respondent shall consider the same and take a decision on the issues raised, after giving the petitioner an opportunity for being heard. It is clarified that, in respect of the exclusion of the period, for computing the escalation for the justified period, computation shall be made strictly following Clause 10C(ii) in terms of the observations made by this Court in this judgment. With regard to the rate of wages in terms of Minimum Wages Act, the necessary decision shall be taken by the 3rd respondent after obtaining report from the 4th respondent.

It is further ordered that upon getting a request in this regard from the 3rd respondent, the 4th respondent shall provide sufficient details to the 3rd respondent to enable the 3rd respondent to take a decision. With regard to the question of the liability upon the petitioner for the unjustified delay of 181 days, the



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explanation offered by the petitioner shall be considered and a decision thereon shall be taken. It is clarified that, decisions as referred to above shall be taken by the 3rd respondent independently and in accordance with law as well as the terms and conditions in the contract, untrammelled by any of the observations made in Ext.P6.

Sd/-

ZIYAD RAHMAN A.A.
JUDGE

Scs/DG/3.7.26



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APPENDIX OF WP(C) NO. 28532 OF 2024

PETITIONER EXHIBITS

Exhibit P-1	TRUE COPY OF THE RELEVANT EXTRACT OF THE NOTICE INVITING TENDER VM/CMG/TSS /01/1001(T) /COMP/006/ 2018-19 RE-TENDER DATED 13/08/2018 ISSUED BY THE THIRD RESPONDENT
Exhibit P- 2	TRUE COPY OF THE LETTER OF ACCEPTING THE PETITIONER'S TENDER DATED 21/01/2019 ISSUED BY THE THIRD RESPONDENT
Exhibit P-3	TRUE COPY OF THE GENERAL CONDITIONS OF THE CONTRACT DATED NIL
Exhibit P-4	TRUE COPY OF THE COMPLETION CERTIFICATE ISSUED BY THE THIRD RESPONDENT DATED 30/08/2023
Exhibit P-5	TRUE COPY OF THE JUDGMENT OF THIS HON'BLE COURT IN W.P.(C)NO.35543/2023 DATED 14/03/2024
Exhibit P-6	TRUE COPY OF THE LETTER OF THE SECOND RESPONDENT DATED 14/05/2024
Exhibit P-7	TRUE COPY OF THE COMMUNICATION OF THE THIRD RESPONDENT DATED 05/06/2024
Exhibit P-8	TRUE COPY OF SRO NO. 766/2010 DATED 04/08/2010
Exhibit P-9	TRUE COPY OF THE ORDER OF THE CHIEF LABOUR COMMISSIONER (CENTRAL) DATED 03/04/2018
Exhibit P-10	TRUE COPY OF THE RELEVANT PAGES OF NOTIFICATION OF THE GOVERNMENT OF INDIA DATED 01/09/2016
Exhibit P-11	TRUE COPY OF THE LETTER OF THE FOURTH RESPONDENT DATED 26/11/2021
Exhibit P-12	TRUE COPY OF THE KERALA EXTRAORDINARY GAZETTE NOTIFICATION DATED 29/07/2019
Exhibit P-13	TRUE COPY OF THE LETTER ISSUED BY THE REGIONAL LABOUR COMMISSIONER (CENTRAL)



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DATED 29/08/2019

Exhibit P-14 TRUE COPY OF THE PETITIONER'S LETTER DATED 31/08/2019 ADDRESSED TO THE THIRD RESPONDENT

Exhibit P-15 TRUE COPY OF THE LETTER ISSUED BY THE THIRD RESPONDENT DATED 22/10/2020

Exhibit P-16 TRUE COPY OF THE LETTER SUBMITTED BY THE PETITIONER DATED 10/06/2024

Exhibit P-17 TRUE COPY OF THE COMMUNICATION OF THE THIRD RESPONDENT DATED 12/06/2024

Exhibit P-18 TRUE COPY OF THE COMMUNICATION

RESPONDENT EXHIBITS

Exhibit R1(k) true copy of the relevant page of Census of India 2011 report, in which Nedumangadu is included in Thiruvananthapuram Urban Agglomeration

PETITIONER EXHIBITS

Exhibit P-19 TRUE COPY OF THE OFFICE MEMORANDUM DATED 13/05/2020 ISSUED BY THE MINISTRY OF FINANCE, GOVERNMENT OF INDIA

RESPONDENT EXHIBITS

Exhibit R1(g) true copy of the first escalation bill dated 03.12.2021 submitted by the petitioner before the 2nd respondent

Exhibit R1(a) true copy of the relevant pages of the agreement No. VMICMG/TSS/0 Ill 00 1/C/ AG(006)/20 18-19 dated 21.01.2019

Exhibit R1(b) true copy of the final bill submitted by the petitioner vide letter dated 25.09.2023

Exhibit R1(c) e true copy of the letter No. VMICMG/CPH/01/1001/2023-24/308

Exhibit R1(d) true copy of letter No. VMICMG/CPH/011100112023-24 dated 12.09.2023



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Exhibit R1(e) true copy of letter No. VMICMD/CPH/MCW/100112023-24 dated 04.10.2023

Exhibit R1(f) e true copy of the memorandum of Writ Petition No. WP(C) No. 35543 of 2023

Exhibit R1(h) true copy of the letter dated 07.12.2021 issued by the 2nd respondent

Exhibit R1(i) true copy of the escalation bill dated 08.12.2021 submitted by the petitioner

Exhibit R1(j) true copy of the Consumer Price Index for the month of August and September, 2018 published by Department of Economics and Statistics, Government of Kerala vide notification No. DES/953/2018-P3(1) dated 15.11.2018

Exhibit R1(l) true copy of the Order No.1/8(3)/2019-LS-II dated 27.03.2019 issued by the Chief Labour Commissioner (C)

Exhibit R1(m) true copy of the Inspection report of the Labour Enforcement Officer (C), Thiruvananthapuram dated 24.03.2021

Exhibit R1(n) true copy of the said letter No. VM/CMG/CPH/0 1/1001/2022-23/293 dated 17.03.2023

PETITIONER EXHIBITS

Exhibit R1(o) TRUE COPY OF THE SAID OFFICE MEMORANDUM NO. DS 3P 16013/20/2020-DIR(PJ)-DOS DATED 31.05.2021

RESPONDENT EXHIBITS

Exhibit R1(p) true copy of the said letter No. VM/CMG/01/1001/C/2020-21dated 30.12.2020

Exhibit R1(q) true copy of the said letter dated 13.04.2023 issued by the petitioner true copy of the said letter dated 13.04.2023 issued by the petitioner

Exhibit R1(r) true copy of the said letter dated



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Exhibit R1(s)

**04.09.2023 issued by the petitioner
price escalation calculation statement
regarding the applicable minimum wages,
dated nil**